CHIMURENGA MINING SYNDICATE
AND
NATHAN TENDAI MANYUCHI
AND
DAUGLAS MAHIYA
V
NOMATTER NYARUGWE
AND
THE PROVINCIAL MINING DIRECTOR MANICALAND N.O
AND
THE SECRETARY FOR MINES AND MINING DEVELOPMENT N.O
AND
THE MINISTER OF MINES AND MINING DEVELOPMENT
AND
THE SHERIFF OF THE HIGH COURT MUTARE N.O
AND
THE REGISTRAR OF THE HIGH COURT MUTARE N.O

HIGH COURT OF ZIMBABWE
SIZIBA J
MUTARE, 23rd & 25th February 2026

**URGENT CHAMBER APPLICATION**

*V. Chinzamba* with *P. C Gwizo*, for the applicants
*C. Maunga* with *D. Mutungura*, for the 1st respondent
*P. Garwe*, for the 2nd to 4th respondent

SIZIBA J**:**

1. The application at hand is styled '*Urgent chamber application for stay of execution and setting aside of a writ*'. It was filed on the 19th of February 2026. The relief sought is in the form of a provisional order. The interim relief sought is as follows:
   *1.The 5th Respondent be and is hereby ordered to stay ejectment or eviction of the applicant from Chimurenga Mining claim, Special Grant SG 10423, Nyanga, pending the finalization of this matter.*

2. The final relief sought by the applicant is as follows:
   *1.The writ of ejectment issued in favor of the 1st Respondent by the 6th Respondent be and is hereby declared to be a legal nullity with no force or effect and is hereby set aside.*
   *2.Respondents to pay costs on a higher scale if they oppose the application.*

3. The relevant background facts of this matter are largely common cause. On the 30th of January 2026, this court in case number HCMTC26/26 granted a spoliation order on an interim basis in favor of the first respondent against the applicants in the following terms:

   *1.The urgent application for mandamus succeeds with costs against the 1st to 3rd Respondents.*

   *2. The 1st to 3rd Respondents, their agents, proxies, employees and or assignees be and are hereby ordered to restore peaceful and undisturbed possession of RUENYA FORTUNE 25 to the applicant forthwith.*

4. The above order was granted in face of applicants' contestation or opposition which was to the effect that they were not in occupation of such mine. The applicants had contended that they were at their own mine which is Chimurenga Mining Syndicate under Special Grant SG 10423. They also alleged that there was a boundary dispute with the first respondent which was pending for resolution by the second respondent.

5. After the spoliation order was granted, the applicants appealed to the Supreme Court under SC97/26. The first respondent then applied for leave to execute pending appeal under HCMTC32/26 and the application was granted by this court. On the 10th of February 2026, the first respondent through his lawyers caused a Writ of Ejectment to be issued by the sixth respondent for the eviction of the applicants on the strength of the spoliation order. The same Writ of Ejectment was served upon the applicants by the fifth respondent on the 11th of February 2026. The applicants now seek relief from this court on the terms outlined above on an urgent basis as they are at the risk of being evicted within a few days as threatened by the 5th respondent. The applicants still maintain that they are not in occupation of the mine where they were ordered to restore peaceful and undisturbed possession to the first respondent. The interim relief that they seek before this court clearly shows this fact. They seek an urgent stay of execution not at the place where the court said they are at but at the place where they have always alleged to be at. The other argument which the applicants are advancing in this case is that the spoliation order does not say that they should be evicted and as such the Writ of Ejectment is a nullity at law.

6. On the other hand, the first respondent is opposed to the relief sought by the applicants. *Mr Garwe* has submitted that the second to the fourth respondents will abide by this court's decision. Counsels for the first respondent took points in *limine* relating to lack of urgency, dirty hands, lack of locus standi, defective interim relief and incompetence of the application. After submissions on these points in *limine*, I reserved my judgment on the points in *limine* and directed the parties to address me on the merits.

7. On urgency, *Mr Maunga*'s submission was that the applicants failed to act when the need to act arose on the 11th of February 2026 when they were served with the Writ of Ejectment. There was a delay of nine days before this application was filed. The usual case of *Kuvarega* v *Registrar General and Another* 1998 (1) ZLR 188 was relied upon. On the other hand, *Mr Chinzamba* contended that the applicants acted timeously by writing to the Registrar in pursuit of domestic remedies. They were advised to approach this court and they did so. He also submitted that the Writ of Ejectment was to be executed soon as the fifth respondent had threatened to return to carry out the eviction in about six days from that day. In my view, there is no merit in the point in *limine* on urgency because a delay of nine days to file this application cannot be said to be out of the ordinary in the circumstances of this case. Moreover, the execution of the Writ of Ejectment by the fifth respondent was imminent. This point in *limine* cannot therefore succeed.

8. *Mr Maunga*'s submission on the point in *limine* on dirty hands was that the applicants have not complied with the order of this court which required that they give first respondent peaceful and undisturbed possession of the mine. They appealed the order but the first respondent was granted leave to execute it pending appeal. *Mr Chinzamba*, on the other hand, argued that it cannot be said that the applicants are in occupation of first respondent's mine when there is a dispute of fact in that regard. He contended that the applicants had ascertained that they are within their own co-ordinates in terms of the survey which they carried out. Whilst I understand where first respondent's concern is coming from, I would not wish to decide this case on the basis of this point in *limine* since the applicants are of the view that it is a disputed issue. I will not uphold this

point in *limine* due to the importance of the issues being raised by the applicants so that applicants can be heard as well.

9. The point in *limine* on lack of *locus standi* is based on the submission that the applicants have failed to allege and meet the requirements of a *declaratur* in respect of the final relief sought. I will not be detained by this point because it relates to the merits of the case. There is accordingly no merit on this point in *limine*.

10. The point in *limine* on the defective relief sought is based on the submission that there is no execution pending at Chimurenga Mining Syndicate as there is no court order or Writ relating to such place. This issue will rather be reserved for determination on the merits as the applicant's case is based on the contention that they are not at first respondent's mine where execution of the order of this court is to be done.

11. The point in *limine* relating to the incompetence of the application is based on the submission by the first respondent's counsel that once a Writ has been issued, it cannot be set aside or nullified. *Mr Chinzamba* argued that this court has the inherent power to set aside or nullify a Writ of Execution which has been wrongly issued. He relied upon *Sinohydro Corporation Limited Zimbabwe* v *Apostolic Church of St Johanne and Others* HH 350/24. He was correct. There is no merit in this point in *limine*.

12. On the merits, the submission by *Mr Chinzamba* was that this court should grant the interim relief sought because the applicants have indicated that they are complying with the spoliation order of this court as they are not at Ruenya Fortune 25 mine. They are at Chimurenga Mining Syndicate being Special Grant SG 10423. They further contend that the fifth respondent served the Writ of Ejectment at their mine and not at first respondent's mine and such execution should be stayed urgently. His further contention was that the Writ of Ejectment was anomalous as there was no court order which spoke of eviction. The case of *Sinohydro Corporation Limited Zimbabwe* v *Apostolic Church of St Johanne and Others (supra)* was relied upon for the position that a Writ of Execution which does not derive from the contents of a court order is

irregular and liable to be set aside. It was further contended that a spoliation order is an order *ad factum praestandum* which is enforceable by contempt of court proceedings. Reliance was placed in *Momberume* v *Marange Apostolic Church of St Johanne* HH 130/13.

13. On the other hand, *Mr Maunga* submitted that the Writ of Ejectment was proper as it was meant to enforce or give effect to the order of this court which required that the first respondent be restored to peaceful and undisturbed possession of its mine. The applicants had not complied with the order of this court. Both counsel could not assist this court with any case law authority to the effect that a spoliation order can or cannot be enforced by a Writ of Ejectment.

14. This court in granting a spoliation order in favour of the first respondent on the 30th of January 2026 under HCMTC26/26 made a decision that the first respondent had been despoiled of its mining shafts at Ruenya Fortune 25 mine by the applicants. This finding by this court was made in face of or despite the applicants' contention that they were not at Ruenya Fortune 25 but at Chimurenga Mining Syndicate being Special Grant SG 10423. The decision of this court was appealed by the applicants and this court granted the first respondent leave to execute the spoliation order pending appeal on 5 February 2026 under HCMTC32/26. I have perused the judgment by my bother MUZENDA J in HCMTJ6-26 which contains full reasons for granting the spoliation order which is the subject matter of this case. Having said that the applicants have despoiled the first respondent at his mine and that they should restore peaceful possession to him, this court is now *functus officio* on the issue relating to the location where the applicants are at least for purposes of that interim order of spoliation. Having said that the applicants should restore peaceful possession to the first respondent, this court cannot now be persuaded again to say that the applicants are located at their own mine vis -a- vis the spoliation order. This court cannot as well say that its judgment should be stayed and not be executed at Chimurenga Mining Syndicate after it has already found that the applicants are at first respondent's mine. This constitutes part of the reason why the stay of execution in terms of the interim relief sought cannot be granted by this court. The applicants, in simple terms are coming back to tell this court

that it made a wrong decision in saying that they despoiled the first respondent when they did not do so and that such decision should be corrected by this court in accepting or agreeing that the applicants are at their own mine. Such attitude borders on contempt of this court. Logically, if the applicants are at their own mine and not at first respondent's mine, then they do not need any relief from this court and no one will evict them at their 'own' mine. Where a court has made its decision correctly or wrongly on a particular point of fact or law, only a higher court can be persuaded to reverse such decision in an appeal or review unless there is a provision in the rules, statute or common law allowing the court to revisit its own decision.

15. The last question to determine is whether this court should stay the execution of the spoliation order on the basis that the Writ of Ejectment is irregular or a nullity since the spoliation order does not specifically refer to eviction or ejectment. R 69 (1) of the High Court Rules, 2021 provides as follows:

> *"**69. Writ of execution –general***
>
> *(1) The process for the execution of any judgment for the payment of money, for the delivery of money, for **the delivery up of goods or premises**, or for ejectment, shall be by writ of execution signed by the registrar and addressed to the sheriff, in accordance with one or other of Forms Nos. 32 to 39.* (Emphasis added)

16. A Writ of Execution is a means of enforcement of a judgment of the court. In this case, the applicants were ordered to give peaceful and undisturbed possession of Ruenya Fortune 25 mine to the first respondent. The only way they can do so is to vacate the premises concerned. They have not done so. Through a Writ of Ejectment, they can be removed by the Sheriff of this court from those premises so as to satisfy the judgment of this court. The proceedings for contempt of court are an additional or alternative means to enforce the judgment of this court since the applicants are correct that the order of this court is an order *ad factum praestandum*.

17. The cases of *Momberume* v *Marange Apostolic Church of St Johanne (supra)* and *Sinohydro Corporation Limited Zimbabwe* v *Apostolic Church of St Johanne and Others (supra)* are quite distinguishable from this case. Both of them did not deal with enforcement of a spoliation order. In *Streamsleagh Investments (Private) Limited* v *Autoband Investments (Private) Limited* SC 72/14, the Supreme Court of Zimbabwe had in an earlier matter allowed an appeal from the High Court and ordered the respondent to restore possession and occupation of the premises to the applicant. A Writ of Ejectment was issued against the respondent and it appealed to the Constitutional Court. The applicant applied for leave to execute the judgment pending appeal and the Supreme Court granted it. There is no legal principle which renders a Writ of Ejectment inappropriate in enforcing a spoliation order as long as the ejectment seeks to achieve the result contemplated by the court order. In this case, what the court order speaks of is to have applicants vacating the place to pave way to first respondent's occupation and possession of its mine and a Writ of Ejectment which seeks to achieve such result by ejecting the applicants cannot be said to be irregular and neither can it be said to be a nullity.

18. For the reasons articulated above, I am not persuaded to grant the interim relief sought by the applicants. The application in its entirety has no merit and it must fail. The first respondent has prayed for costs on a legal practitioner and client scale. I am not persuaded to grant costs at that scale because the first respondent also raised points in *limine* that were found to be without merit by this court. I therefore order as follows:
    (a) All the points in *limine* taken by the first respondent be and are hereby dismissed for lack of merit.
    (b) The application be and is hereby dismissed with costs.

*Mugadza Chinzamba and Partners,* applicants' legal practitioners
*Maunga Maanda and Associates,* 1st respondent's legal practitioners
*Civil Division of the Attorney General,* 2nd to 4th respondents' legal practitioners